

Court No. - 38

Case :- WRIT - C No. - 8918 of 2019

Petitioner :- Kaptan Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Subhash Gosain

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Abhinava Upadhya,J.

Hon'ble Jayant Banerji,J.

Heard Shri Subhash Gosain, learned counsel for the petitioner and Shri Baleshwar Chaturvedi, learned counsel for the respondent nos.2 and 3.

By means of this writ petition, the petitioner has raised a grievance that without there being any agreement with the respondent-Corporation, the Corporation is raising demand for a sum of Rs.2 lacs and odd towards the electricity dues.

Learned counsel appearing for the petitioner submits that since there is no agreement between the petitioner and the Corporation, no such demand can be made.

It appears that the petitioner is disputing the electricity bill. It is further submitted that the Corporation has offered One Time Settlement in 2019 with 100% waiver of charge, but the petitioner did not avail such remedy.

Be that as it may, since the petitioner is disputing the electricity bill and the demand, it is always open to him to approach the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005. In case, the petitioner approaches the Executive Engineer by filing a fresh representation alongwith a certified copy of this order, the Executive Engineer will consider the claim of the petitioner and pass appropriate order, as far as possible, within one month.

With the aforesaid observation, the writ petition is disposed of.

Order Date :- 15.3.2019

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(Jayant Banerji, J.) (Abhinava Upadhyaya, J.)